

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
KIARA BUCCHAN, AARON DOCKERY, and
CHRISTINE MOORE,

Plaintiff designates

Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose

-against-

SUMMONS

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, FELIX
LIBERATO, VICTOR REYES, PETAR SIMONOVIC,
DET. CRUZ, and JOHN or JANE DOE 1-10,

Defendants.

-----X
TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve
a copy of your answer, or if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons,
exclusive of the day of service (or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York); and in case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
complaint.

Dated: Bayside, New York
August 19, 2019



SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

FELIX LIBERATO, Shield Number 1401, OF NARCB BX
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

VICTOR REYES, Shield Number 002151, OF NARCB BX
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

PETAR SIMONOVIC, Shield Number 4299, OF NARCB BX
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

DET. CRUZ, Shield Number 00400, OF NARCB BX
1 POLICE PLAZA
NEW YORK, NEW YORK 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
KIARA BUCCHAN, AARON DOCKERY, and
CHRISTINE MOORE,

Plaintiffs,

Index No.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, FELIX
LIBERATO, VICTOR REYES, PETAR SIMONOVIC,
DET. CRUZ, and JOHN or JANE DOE 1-10.

-----X

Plaintiffs, AARON DOCKERY, KIARA BUCCHAN, and CHRISTINE MOORE, by their
attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, alleges as
follows:

1. The following claims arise from a June 30, 2018 incident, in which defendants, acting
under color of state law, unlawfully arrested and detained plaintiffs, Kiara Bucchan,
Aaron Dockery and Christine Moore. Plaintiffs were subsequently charged with Criminal
Possession of a Controlled Substance, Criminal Possession of a Controlled Substance in
the Seventh Degree, Criminal Using Drug Paraphernalia and Unlawful Possession of
Marijuana. As a result, Ms. Bucchan, Mr. Dockery, and Ms. Moore were deprived of
their liberty, and caused to sustain various physical and emotional injuries. Ms. Bucchan,
Mr. Dockery, and Ms. Moore were wrongfully incarcerated for approximately for forty
(40) hours, until they were released on, or about, July 1, 2019, after being arraigned. All
plaintiffs were maliciously prosecuted, until their charges were dismissed on January 11,
2019.

2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

3. Plaintiff KIARA BUCCHAN ("Ms. Bucchan") resides at 5360 Broadway, Apartment 3H, Bronx, 10463.
4. Plaintiff AARON DOCKERY ("Mr. Dockery") resides at 1240 Woodycrest Avenue, Bronx, NY 10452.
5. Plaintiff CHRISTINE MOORE ("Ms. Moore") resides at 2831 Exterior Street, Bronx, NY 10463.
6. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
7. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") is responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
8. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
9. Defendant FELIX LIBERATO ("LIBERATO") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent,

servant and employee of the City of New York. Defendant Liberato was, at all times relevant herein, a police officer, Shield Number 1401 and Tax Reg. No. 950749, of NARBBX, 1 Police Plaza, New York, New York, 10038. Defendant Liberato is being sued in his individual and official capacities.

10. Defendant VICTOR REYES (“REYES”) was, at all times here relevant, a police officer or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Reyes was, at all times relevant herein, a detective or police officer, under Shield No. 002151 of NARBBX, 1 Police Plaza, New York, New York, 10038. Plaintiff is presently unaware of defendant Reyes’ Tax Reg. No., but further identifies him as the Detective Victor Reyes referenced on the criminal court complaint against plaintiffs, under Docket No. 2018BX021908. Defendant Reyes is being sued in his individual and official capacities.
11. Defendant PETAR SIMONOVIC (“SIMONOVIC”) was, at all times here relevant, a detective or police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Simonovic was, at all times relevant herein, a detective or police officer under Shield No. 4299 and Tax Reg. No. 946257, of NARBBX, 1 Police Plaza, New York, New York, 10038. Defendant Simonovic is being sued in his individual and official capacities.
12. Defendant DETECTIVE CRUZ (“CRUZ”) was, at all times here relevant, a detective or police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Cruz was, at all times relevant herein, a detective or police officer under Shield No. 00400 of NARBBX, 1 Police Plaza, New York, New York, 10038. Plaintiff is presently unaware of defendant Cruz’ first

name or tax registry number. Plaintiff further identifies defendant Cruz as the Detective Cruz referenced in the criminal court complaint, under Docket No. 2018BX021908.

Defendant Cruz is being sued in his individual and official capacities.

13. At all times relevant Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff's do not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
14. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
15. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
16. Plaintiffs have each served timely notices of claim upon the New York City Comptroller.
17. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
18. Plaintiffs have complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
19. Plaintiffs have complied with all conditions precedent prior to the commencement of this action.
20. This action and associated claims have been timely commenced within all applicable statutes of limitations.

FACTUAL CHARGES

21. On June 30, 2019, at approximately 6:25 AM, Mr. Dockery, Ms. Bucchan and Ms. Moore were inside of 775 Eagle Avenue, Apt. 4J, Bronx, NY 10467.
22. Mr. Dockery, Ms. Bucchan and Ms. Moore were present at the above location as mere visitors only, as each permanently reside elsewhere.
23. Mr. Dockery, Ms. Bucchan and Ms. Moore arrived at the subject apartment at approximately 4:30 a.m., on June 30, 2018.
24. At all times in said apartment, Mr. Dockery, Ms. Bucchan and Ms. Moore were not aware of, and did not observe any contraband that defendants, including Liberato, Reyes, Simonovic, and Cruz, alleged to be present.
25. Plaintiffs each assert that no contraband was in plain view, or otherwise visible or accessible, within the apartment, including the back bedroom, while plaintiffs were present within the apartment.
26. During the approximately two (2) hours that plaintiffs were inside of the subject apartment, namely the back bedroom, each plaintiff had ample opportunity to observe and familiarize themselves with the contents therein.
27. Accordingly, Mr. Dockery, Ms. Bucchan and Ms. Moore each assert that no contraband, including a plastic bag containing nine (9) yellow Ziploc bags of alleged crack/cocaine, one (1) green Ziploc bag of alleged marijuana and thirty-two clear Ziploc bags of alleged crack/cocaine, one (1) scale with alleged cocaine or marijuana residue, and one (1) clear plastic bag containing alleged marijuana or cocaine, were in plain view, or observable in any way, from the time of plaintiffs' arrival, until the arrival of defendants, including Liberato, Reyes, Simonovic, and Cruz.

28. Ms. Moore further asserts that she is fully aware and familiar with all of the items within her possession on June 30, 2018 and that none of said items contained a clear Ziploc bag with alleged cocaine.
29. Mr. Dockery further asserts that there was no blue plastic bottle with alleged marijuana inside of his pants pocket.
30. On said date, time, and location, Defendants, including Liberato, Reyes, Simonovic, and Cruz, entered said apartment pursuant to a warrant obtained via the use of fraud, perjury, the suppression of evidence, and/or the commission of acts in gross deviation from proper police procedure, namely the false affidavit and/or testimony submitted by Defendants, including Liberato, Reyes, Simonovic, and Cruz and the false information offered by defendants' confidential informant, if one even existed.
31. Defendants, including Liberato, Reyes, Simonovic, and Cruz, did not provide complete or truthful facts to the District Attorney's Office or the Presiding Judge to justify the issuing of a valid search warrant.
32. Defendants, including Liberato, Reyes, Simonovic, and Cruz, illegally searched and seized Mr. Dockery, Ms. Bucchan and Ms. Moore, without probable cause to do so, as they had committed no crimes or violations of the law.
33. Defendants, including Liberato, Reyes, Simonovic, and Cruz, committed multiple assault and batteries to Mr. Dockery, Ms. Bucchan and Ms. Moore, including but not limited to, handcuffing them too tightly, violently grabbing, pushing, shoving, and slamming them to the floor.
34. Defendants, including Liberato, Reyes, Simonovic, and Cruz, did not have arrest warrants for Mr. Dockery, Ms. Bucchan or Ms. Moore.

35. Defendants, including Liberato, Reyes, Simonovic, and Cruz, were fully aware, at all times, that they lacked probable cause to arrest Mr. Dockery, Ms. Bucchan and Ms. Moore, because defendants never observed or possessed a reasonable belief that Plaintiffs committed any crimes or violations of the, including, but not limited to, Criminal Possession of a Controlled Substance, Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Using Drug Paraphernalia and Unlawful Possession of Marijuana.
36. Defendant Liberato was plaintiffs' arresting officer and falsely signed the criminal court complaint against plaintiffs, claiming that he observed plaintiffs to be in possession a scale with alleged cocaine residue and a clear plastic bag containing alleged cocaine, when he knew or should have known that said claims were completely fictitious, unattributable to plaintiffs and/or otherwise baseless.
37. Defendant Reyes falsely claimed that plaintiffs were each in possession of quantities of alleged cocaine and marijuana that were thrown from a window, when he knew or should have known such claims to be completely fabricated, unfounded and/or impossible to attribute to plaintiffs.
38. Defendant Cruz falsely claimed that plaintiffs were each in possession of a pink twist contained alleged cocaine that was allegedly inside of a black sweater on the floor of the back bedroom, when he knew or should have known that said alleged cocaine could not be attributed to plaintiffs and/or that said claim was completely fabricated.
39. Defendant Simonovic falsely claimed that he observed and/or recovered a quantity of marijuana from Mr. Dockery's pants' pocket, when he knew such claim to be outright untruthful.

40. Plaintiffs, Mr. Dockery, Ms. Bucchan and Ms. Moore, were not in actual, constructive or statutory possession of any contraband, including any alleged controlled substances allegedly recovered from said apartment, as plaintiffs did not reside within the apartment, the alleged contraband was not accessible to plaintiffs or discovered in plain view, and defendants cannot prove that any contraband was actually recovered from inside the apartment.
41. Plaintiffs, Mr. Dockery, Ms. Bucchan and Ms. Moore, did not violate any law or local ordinance, including, but not limited to, Criminal Possession of a Controlled Substance, Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Using Drug Paraphernalia and Unlawful Possession of Marijuana.
42. Defendants, including Liberato, Reyes, Simonovic, and Cruz, were fully aware that there was no probable cause to believe prosecutions would succeed against Mr. Dockery, Ms. Bucchan and Ms. Moore, as defendants were fully aware that Plaintiffs were completely innocent of any wrongdoing, yet defendants forwarded the aforementioned false information to prosecutors in furtherance of plaintiffs' malicious prosecution, nonetheless.
43. Defendants, including Liberato, Reyes, Simonovic, and Cruz, arrested and initiated prosecutions against plaintiffs, not because they desired to convict plaintiffs or that they believed plaintiffs to be guilty of any crimes, but because defendants sought to compel plaintiffs to inculcate or provide evidence against defendants' true target(s), sought to use plaintiffs' arrests as leverage in defendants' attempts to compel their true target(s) to confess, and to obtain additional arrest credits to satisfy their monthly arrest quota.

44. Plaintiffs, Mr. Dockery, Ms. Bucchan and Ms. Moore, were each the targets of derogatory and profane language that evinced clear discriminatory predilections on behalf of Defendants, including Liberato, Reyes, Simonovic, and Cruz.
45. Defendants, including Liberato, Reyes, Simonovic, and Cruz, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the unlawful searching, assaulting, battering, seizing, arresting, initiating of criminal prosecutions and use of excessive force against Plaintiffs.
46. Defendants, including Liberato, Reyes, Simonovic, and Cruz, would not have arrested, used excessive force and caused criminal prosecutions to be initiated against Plaintiffs, but for Plaintiffs' race, ethnicity, national origin, immigration status, religion, gender or age.
47. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiffs' arrest without probable cause.
48. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
49. The instant arrest of Plaintiffs without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiffs.
50. The NYPD, its police officers and detectives have a long and documented pattern and practice of arresting every individual present during the execution of a search warrant,

regardless of probable cause, which has resulted in thousands of prior lawsuits, some of which filed by the undersigned attorneys.

51. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
52. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrests will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Dockery, Ms. Bucchan and Ms. Moore.
53. At all times relevant hereto, Defendants, including Liberato, Reyes, Simonovic, and Cruz, acted maliciously and with intent to injure Plaintiffs, as substantiated by their discriminatory rhetoric and overt acts in furtherance of their discriminatory ideations and tendencies, as well as the absence of any probable cause.
54. At all times relevant hereto, Defendants, including Liberato, Reyes, Simonovic, and Cruz, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.
55. At all times relevant hereto, Defendants, including Liberato, Reyes, Simonovic, and Cruz, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, namely failing to properly investigate the claims of the unknown male individual, entering a residence without a warrant, probable cause or consent to do so and physically

- restraining and arresting Plaintiffs without probable cause, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' criminal prosecutions.
56. As a direct and proximate result of the acts of defendants, including the City of New York, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.
57. Plaintiffs, Mr. Dockery, Ms. Bucchan and Ms. Moore, were placed in a van and eventually taken to a local NYPD Precinct, where they were each criminally processed.
58. Plaintiffs, Mr. Dockery, Ms. Bucchan and Ms. Moore, were denied their liberty and unlawfully kept in custody over the course of two (2) days until they were released following their releases on their own recognizances.
59. The prosecutions of Plaintiffs ended when all the charges against each of them were unconditionally dismissed and sealed on January 11, 2019.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

60. The above paragraphs are here incorporated by reference as though fully set forth.
61. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
62. Plaintiffs were conscious of their confinement.
63. Plaintiffs did not consent to their confinement.
64. Plaintiffs' arrests and false imprisonment were not otherwise privileged.

65. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
66. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
67. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

68. The above paragraphs are here incorporated by reference as though fully set forth.
69. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
70. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
71. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
72. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
73. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

74. The above paragraphs are here incorporated by reference as though fully set forth.
75. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
76. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching, thus battering them without their consent.
77. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
78. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
79. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

80. The above paragraphs are here incorporated by reference as though fully set forth.
81. The Defendants, acting under color of state law, violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.
82. Defendants engaged in and subjected Plaintiffs' to immediate harmful and/or offensive touching and battered him without their consent.
83. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
84. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

- 85. The above paragraphs are here incorporated by reference as though fully set forth.
- 86. Defendants initiated the prosecutions against Plaintiffs.
- 87. Defendants lacked probable cause to believe Plaintiffs were guilty or that prosecutions would succeed against them.
- 88. Defendants acted with malice.
- 89. The prosecutions were terminated in Plaintiffs' favor when the criminal charges against each of them were dismissed and sealed.
- 90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 91. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
- 92. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTIONMalicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

- 93. The above paragraphs are here incorporated by reference as though fully set forth.
- 94. Defendants, acting under color of state law, initiated the prosecution against Plaintiffs.
- 95. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed against them.
- 96. Defendants acted with malice.

97. The criminal charges against Plaintiffs were dismissed and sealed as to each, representing terminations of the prosecutions in favor of the Plaintiffs.
98. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.
99. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
100. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

101. The above paragraphs are here incorporated by reference as though fully set forth.
102. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
103. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
104. Defendants intended to inflict substantial harm upon Plaintiffs.
105. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
106. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
107. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
108. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

- 109. The above paragraphs are here incorporated by reference as though fully set forth.
- 110. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
- 111. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
- 112. Defendants intended to inflict substantial harm upon Plaintiffs.
- 113. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
- 114. Defendants' actions deprived Plaintiffs' of their right to free from illegal searches and seizures, as well as their right not to be deprived of their liberty without due process of law.
- 115. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
- 116. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

- 117. Plaintiffs are of African-American or Hispanic race, ethnicity, color, descent or national origin, members of a racial minority and protected classes.
- 118. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin,

ethnicity, or sex.

119. Defendants also selectively treated Plaintiffs as compared to others similarly situated to Plaintiffs.
120. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiffs' exercising of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
121. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
122. Defendants, motivated by discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
123. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
124. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
125. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
126. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1983 and 1981 Against Individual Defendants

127. Plaintiffs are of African-American or Hispanic race, ethnicity, color, descent or national origin, members of a racial minority and protected classes.
128. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin, ethnicity, or sex.

129. Defendants also selectively treated Plaintiffs as compared to others similarly situated to Plaintiffs.
130. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiffs' exercising of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
131. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
132. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
133. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
134. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
135. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1985 and 1986 Against Individual Defendants

136. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of the equal protection of the laws, or of the privileges and immunities under the laws.
137. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.
138. Plaintiffs sustained injuries to their persons and were deprived of rights or privileges of citizens of the United States.
139. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

140. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.
141. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
142. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

143. The above paragraphs are here incorporated by reference as though fully set forth.
144. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
145. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
146. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
147. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

148. The above paragraphs are here incorporated by reference as though fully set forth.
149. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
150. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
151. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
152. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

153. The above paragraphs are here incorporated by reference as though fully set forth.
154. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
155. Defendant City breached that duty of care.
156. Defendant City placed defendants in a position where they could inflict foreseeable harm.
157. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.
158. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

159. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
160. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

161. The above paragraphs are here incorporated by reference as though fully set forth.
162. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.
163. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
164. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.
165. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City’s employees.
166. Defendant City’s conduct violated Plaintiffs’ rights under the Fourth and Fourteenth Amendments to the United States Constitution.

167. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.

168. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

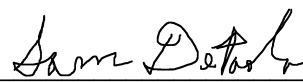
WHEREFORE, Plaintiffs' respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- q) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; together with the costs and disbursements of this action

Dated: Bayside, New York
August 19, 2019


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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 19, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KIARA BUCCHAN, AARON DOCKERY, and CHRISTINE MOORE,

Plaintiffs,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, FELIX LIBERATO, VICTOR REYES, PETAR SIMONOVIC, DET. CRUZ, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard, Suite 201

Bayside, New York 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for